

**IN RE: PANDIT**

**CASE NUMBER: 26CV-0210214**

**Tentative Ruling on Petition for Change of Name:** Petitioner Arianna Carin Pandit seeks to change her name to Arianna Carin Lemont. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

**IN RE: REMINGTON**

**CASE NUMBER: 26CV-0210245**

**Tentative Ruling on Petition for Change of Name:** Petitioner Brittany Jean Remington seeks to change her name to Brittany Jean Vaughn. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

**ROCKY TOP RENTALS, LLC VS. ROBINSON, ET AL.**

**CASE NUMBER: 24CVG-00573**

**Tentative Ruling on Motion to Deem Request for Admissions Admitted:** Plaintiff Rocky Top Rentals, LLC seeks an order deeming the truth of the matters specified in Plaintiff's Request for Admissions, Set One to be admitted by Defendant Rick Carl Lewis. Despite being timely served, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c). Plaintiff has presented evidence that Plaintiff has incurred four hours of attorney time thus far and expects to spend one more hour attending the hearing. Counsel bills at \$325 per hour which the Court finds to be reasonable. The filing fee for the motion was \$60. Assuming that Plaintiff attends the hearing, sanctions will be ordered in the amount of \$1,685. If Plaintiff does not attend the hearing, sanctions will be ordered in the amount of \$1,360.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Monetary sanctions are awarded to Plaintiff in either the amount of \$1,685 or \$1,360. Plaintiff is to provide a proposed Order consistent with the Court's ruling that includes the text of all Requests for Admission being deemed admitted. The Court confirms the trial date of September 22, 2026.

**SATHER VS. SATHER**

**CASE NUMBER: 26CV-0210352**

**Tentative Ruling on Demurrer and Motion to Strike:** Defendant Barry Sather filed a Demurrer and Motion to Strike on May 27, 2026. The hearing date in the caption of the notice is June 29, 2026. However, the body of the Notice provides for a hearing date of June 22, 2026. Additionally, the Proof of Service attached to the Notice indicates only electronic service on Plaintiff Matthew Sather. Plaintiff is a self-represented litigant. Electronic service is only permitted for self-represented litigants if express consent has been given. CCP § 1010.6(c). Judicial Council form EFS-005-CV has not been filed and there is nothing before the Court that would permit the Court to determine that Plaintiff has agreed to electronic service. Compliance with CCP § 1010.6 and CRC 2.251